

24NNCV06736 24NNCV06736

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CE%2C08%2F28%2F2026

Source SHA-256: 5535c379014e29d3b92402a08e927442cc6a519278a05c77fa5122c897cacbce

Case Number: 24NNCV06736 Hearing Date: August 28, 2026 Dept: E

CONFIDENTIAL, COURT-PRIVILEGED DOCUMENT

Hearing

Date: 08/28/2026 – 8:30 a.m.

Case No. 24NNCV06736

Trial Date: UNSET

Case Name: LOURDES MARIA QUINTERO SANCHEZ v. GARY L. BECK; MARY E. BECK; and
DOES 1 to 50

TENTATIVE RULING – MSJ/MSA

BACKGROUND

Plaintiff, Lourdes Maria Quintero Sanchez, filed the instant
action on 12/23/2024 against Defendants, Gary L. Beck and Mary E. Beck.

This matter arises from a slip and fall incident involving
Plaintiff at the residential property of Defendants. (Compl. ¶ 6.)

Plaintiff alleges she is a housekeeper and caterer who
provides cleaning services for Defendants. (Compl. ¶ 7.)

Plaintiff's Complaint alleges one cause of action for
negligence and premises liability.

On 10/29/2025, this Court DENIED both of Plaintiff's motions for summary adjudication.

RELIEF REQUESTED:

Defendants - Gary L. Beck and Mary E. Beck – move for summary judgment pursuant to CCP §§ 437c in favor of Defendants and against Plaintiff.

Alternatively, Defendants move for summary adjudication to Plaintiff's claims for negligence and premises liability on the basis that Plaintiff's claims are subject to workers' compensation exclusivity.

PAPERS SUBMITTED

Moving Papers : Notice/Motion;
Separate Statement; Compendium of Evidence; Proposed Order; Grochow Declaration

Opposing Papers : Opposition;
Separate Statement; Objections to Defendants' Evidence; Plaintiff's Appendix

Reply Papers : Reply; Proof of
Service; Response to Plaintiff's Additional Evidence; Objections to Evidence in
Opposition; Proposed Order

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the

pleadings.” (Juge v. County of Sacramento
(1993) 12 Cal.App.4th 59, 67, citing FPI
Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant
moving for summary judgment must satisfy the initial burden of proof by
presenting facts to negate an essential element, or to establish a defense.
(CCP, § 437c(p)(2); Scalf v. D. B. Log
Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) The plaintiff or
cross-complainant shall not rely upon the allegations or denials of its
pleadings to show that a triable issue of material fact exists, but instead,
shall set forth the specific facts showing that a triable issue of material
fact exists as to the cause of action or a defense thereto. (CCP, § 437c(p)(2).)
Courts “liberally construe the evidence in support of the party opposing
summary judgment and resolve doubts concerning the evidence in favor of that
party.” (Dore v. Arnold Worldwide, Inc. (2006)
39 Cal.4th 384, 389.)

“Once the defendant
or cross-defendant has met that burden, the burden shifts to the plaintiff or
cross-complainant to show that a triable issue of one or more material facts
exists as to the cause of action or a defense thereto. The plaintiff or
cross-complainant shall not rely upon the allegations or denials of its
pleadings to show that a triable issue of material fact exists but, instead,
shall set forth the specific facts showing that a triable issue of material
fact exists as to the cause of action or a defense thereto.” (CCP,
§437c(p)(2).)

To establish a triable issue of material fact, the party
opposing the motion must produce substantial responsive evidence sufficient to
establish a triable issue of material fact on the merits of the defendant's
showing. (Sangster v. Paetkau (1998)
68 Cal.App.4th 151, 163.)

TENTATIVE RULING

Defendants
argue that Plaintiff's action fails as a matter of law because the evidence and
arguments establish that Plaintiff's claims are barred because workers'
compensation is the exclusive remedy for Plaintiff's claims.

Defendants

argue that Plaintiff is a “residential employee” as defined by Labor Code § 3351(d); therefore, workers’ compensation is the exclusive remedy.

As

explained in Padron:

“As a general rule, an employee who sustains an industrial injury ‘arising out of and in the course of the employment’ is limited to recovery under the workers’ compensation system.” (**38 Torres v. Parkhouse Tire Service, Inc. (2001) 26 Cal.4th 995, 1001, 111 Cal.Rptr.2d 564, 30 P.3d 57.) “The underlying premise behind this” rule, which we refer to as the exclusivity defense, is that “ ‘the employer assumes liability for industrial personal injury *690 or death without regard to fault in exchange for limitations on the amount of that liability. The employee is afforded relatively swift and certain payment of benefits to cure or relieve the effects of industrial injury without having to prove fault but, in exchange, gives up the wider range of damages potentially available in tort.’ ” (Charles J. Vacanti, M.D., Inc. v. State Comp. Ins. Fund (2001) 24 Cal.4th 800, 811, 102 Cal.Rptr.2d 562, 14 P.3d 234.)

Whether workers’ compensation exclusivity applies “generally turns on the workers’ compensation definition of ‘employee.’ ”

(Padron v. Osoy (2025) 110 Cal.App.5th 677, 689-690.)

Defendants argue that Plaintiff is a “residential employee” under Labor Code § 3351(d).

Under Labor Code § 3351(d):

“Employee” means every person in the service of an employer under any appointment or contract of hire or apprenticeship, express or implied, oral or written, whether lawfully or unlawfully employed, and includes:

- (d) Except as provided in paragraph (8) of subdivision
- (a) of Section 3352, any person employed by the owner or occupant of a

residential dwelling whose duties are incidental to the ownership, maintenance, or use of the dwelling, including the care and supervision of children, or whose duties are personal and not in the course of the trade, business, profession, or occupation of the owner or occupant.

(Labor Code, § 3351(d).)

Here, the Court does not find

Defendants' argument availing – that Plaintiff is a “residential employee” under Labor Code § 3351(d) – because there is a dispute of material fact as to whether or not Plaintiff was an employee under Labor Code § 3351(d).

Plaintiff propounded RFAs 16 and 17

upon Defendant, Mary E. Beck, and Mary E. Beck admitted that Plaintiff was an independent contractor at the time of the incident, and she admitted that Plaintiff was not her employee at the time of the incident. (Pl. Ex. G, RFAs 16 & 17.)

Under

S.G. Borello & Sons, Inc. :

The Workers'

Compensation Act (Act) extends only to injuries suffered by an “employee,” which arise out of and in the course of his “employment.” (§§ 3600, 3700; see Cal. Const., art. XIV, § 4 (former art. XX, § 21).) “Employee[s]” include most persons “in the service of an employer under any ... contract of hire” (§ 3351), but do not include independent contractors. The Act defines an independent contractor as “any person who renders service for a specified recompense for a specified result, under the control of his principal as to the result of his work only and not as to the means by which such result is accomplished.” (§ 3353.)

(S.G.

Borello & Sons, Inc. v. Department of Industrial Relations (1989) 48 Cal.3d 341, 349.)

Further, the determination of employee

or independent-contractor status is one of fact if dependent upon the resolution of disputed evidence or inferences. (S.G. Borello & Sons, Inc. v. Department of Industrial Relations (1989) 48 Cal.3d 341, 349 citing

Germann v. Workers' Comp. Appeals Bd. (1981) 123 Cal.App.3d 776, 783.)

At the very least, Plaintiff's Exhibit

G demonstrates a dispute of material fact as to whether or not Plaintiff is an employee/residential employee.

Defendants also argue that since

Plaintiff has been provided with \$103,624.53 in workers' compensation benefits from State Farm through its claim administrator, Plaintiff is a residential employee because those benefits are only available to residential employees.

Further, Defendants argue that

Plaintiff is an employee because:

On or around May 1, 2026, Plaintiff filed an Application for

Adjudication of Claim with the Workers' Compensation Appeals Board purporting to seek additional workers' compensation benefits, specifically (1) temporary disability indemnity; (2) permanent disability indemnity; (3) reimbursement for medical expenses; (4) rehabilitation; (5) medical treatment; (6) supplemental job displacement/return to work; (7) compensation at proper rate; and (8) all benefits available to her per the Labor Code. (UMF No. 16.) The Application identifies Defendant Mary Beck as her employer. (UMF No. 17.)

The Application confirms Defendant Mary Beck was insured at

the time of the incident. (UMF No. 18.) The Application identifies Defendants' insurance carrier and claims administrator responsible for those prior workers' compensation payments. (UMF No. 19.) The Application confirms that she was a housekeeper on the date of the injury. (UMF No. 20.) The Application confirms that said injury occurred at her worksite. (UMF No. 21.) Plaintiff and her counsel have argued throughout this case and in her unsuccessful MSA that Plaintiff was an independent contractor rather than a residential employee of Defendants at the time of the incident, while simultaneously collecting workers' compensation benefits and continuing to seek additional workers' compensation benefits that would only be available to a residential employee of Defendants. (UMF No. 22.)

(Def. Mot., p. 15-16.)

Here, the Court does not find

Defendants' argument availing.

In *Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437, a plaintiff received \$172,589.02 in medical benefits and \$78,839.99 in temporary disability benefits from the State Compensation Insurance Fund under defendants' workers' compensation policy. (*Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437, 445-446.) The trial court estopped the plaintiff from claiming she was not subject to workers' compensation as an exclusive remedy because the undisputed evidence established that plaintiff successfully obtained workers' compensation benefits. (*Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437, 448.)

On appeal, the Sixth District Court of Appeal held that the trial court erred in concluding that the receipt of workers' compensation benefits established that plaintiff had successfully asserted the position she took in her WCAB pleadings. (*Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437, 450.)

Here, based on *Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437, 449-459, it does not appear that Plaintiff's acceptance of benefits and filing of Application for Adjudication of Claim with the Workers' Compensation Appeals Board does not support granting summary judgment.

First, Defendants' moving papers do not cite to any authority that filing a claim with the WCAB and receiving benefits prevents Plaintiff from filing the instant action.

Further, *Minish* discussed judicial estoppel, binding admissions, judicial admissions, evidentiary admissions, and admission by conduct with respect to whether or not the plaintiff's conduct would qualify the plaintiff as an employee/volunteer. Defendants' moving papers make no explanation as to how Plaintiff's actions establish that Plaintiff is an employee based on Plaintiff's actions; Defendants' moving papers do not set forth any legal standard that they satisfied with respect to demonstrating that Plaintiff is an employee with respect to Plaintiff receiving benefits/Plaintiff filing an application with the WCAB.

Further, there are triable issues of fact as to whether Plaintiff intended her acceptance of benefits as an admission that workers' compensation applied, and there are triable issues of fact as to whether Plaintiff is an employee. (See Def. Ex. B and Pl. Ex. G

& L.)

Defendants' motion for summary

judgment, or in the alternative, summary adjudication, is DENIED.